

Case Study: Choose Your Neighbor

(Adapted from National Association of REALTORS® Case #10-5: Use of "Choose Your Neighbor" Form Letters as Part of a Marketing Campaign. Names have been created to more easily identify the parties.)

The ABC Board of REALTORS® received a complaint from a local fair housing group alleging that REALTOR® Andrea was using discriminatory marketing techniques, in violation of Article 10 of the Code of Ethics, as the listing broker for a property in a new subdivision. In support of their complaint, the fair housing group provided copies of "Choose Your Neighbor" form letters sent by Andrea to current neighborhood residents. The letters announced that the property was on the market and invited neighborhood residents to contact Andrea if they knew of anyone who they thought might be interested in purchasing the home.

At the hearing, Andrea defended her use of "Choose Your Neighbor" form letters by demonstrating that they were just one element of her marketing campaign and weren't an attempt to restrict access to the property on the basis of race, color, religion, sex, disability, familial status, or national origin as prohibited by Article 10. Andrea produced copies of advertisements run in several newspapers, open house fliers distributed at supermarkets throughout the town, and a copy of the property data sheet submitted to the board's MLS. Andrea remarked, "In my experience, the current residents of a neighborhood often have friends or relatives who have said that they would love to live in the neighborhood. It just makes sense to me to include contacting these folks in any marketing campaign!"